

Guidelines on Conflict of Interest in IIT Delhi

Office of Dean Faculty

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Background

This document summarizes IIT Delhi's Policy on Conflict of Interest (Col). It defines what Col is, when it may be said to exist, how it may be recognized, and how it may be managed. Col must be declared, recorded and managed as described in this document. This document may be updated whenever new situations where Col exists are recognized. The Col Disclosure Form is also hereby created and included for adoption for disclosing Col.

Contents

I	Policy on Conflict of Interest in IIT Delhi	5
1	What is the IITD policy on Col ?	5
2	Administrative process for handling Col and the Institute Committee on Conflict of Interest Issues (ICColI)	6
3	Definition of Conflict of Interest and associated terms	6
3.1	Definitions	8
4	Significance of Conflict of Interest	9
4.1	Responsibilities	9
5	Col Disclosure Form	11
II	Management of Conflict of Interest in IIT Delhi	13
6	Procedures and action to be taken on Col	13
6.1	Recognising if Col exists	13
6.1.1	How should Col be declared or disclosed ?	14
6.2	Procedures for managing Col	14
6.2.1	Permitted exceptions even if Col exists	15
6.3	Procedures for mitigating Col	15
6.4	Procedure for resolving Col	15
6.4.1	Removing oneself from Col	16
6.5	Whistleblower mechanisms for Col	16
6.6	Col and the Actions required through the research lifecycle	16
7	Outside Professional Activities and Col	16
7.1	External Professional Activities	16

7.2	Avoiding Col in the use of the Institute image or name	16
7.3	Col in allowing access to facilities of the Institute	17
7.4	Col in incentives to junior faculty	17
7.5	Col in Incentives (Gifts, Loans, Honoraria, Gratuities and Entertainment)	17
7.6	Col in Endowments and Philanthropy	18
7.7	Faculty and students	18
7.8	Faculty and Support Staff	18
7.9	Use of Institute Name	18
7.10	Use of institute letterhead and official Institute business card	19
7.11	Use of facilities and Col arising thereof	19
7.12	Use of Institute facilities by non-Institute groups	20
7.13	Recognition of priority of facility usage to prevent Col	20
8	Use of outside facilities by the Institute	21
9	Use of facilities for political action	21
10	Responsibility of the Unit Head	21
11	Non-compliance	21
12	How to seek Review of existing Col Policy	21
13	Increasing awareness of Col through sensitization workshops	21
14	More information on Col	22
15	Relationships in Col	22
15.1	Close personal relations with colleagues	22
15.2	Close personal relations with students	22
15.3	Disclosing Col in matters relating to a personal relationship	22
15.4	Disclosure on matters pertaining to litigation which might affect the Institute	23

16 Case studies and examples of Col	23
16.1 Financial interests:	23
16.2 Research:	23
16.3 Student supervision and teaching	24
16.4 Other examples of possible conflicts of interest	25
16.5 Favoring of Outside Interests for Personal Gain	25
16.6 Inappropriate Use of University Personnel, Resources or Assets	25
16.7 Inappropriate Use of Information	26
16.8 Conflict of Commitment	26
16.9 Inappropriate Involvement in Appointment Processes	26

Part I

Policy on Conflict of Interest in IIT Delhi

This document presents the policy of IIT Delhi (hereafter, the Institute) in situations where a real, perceived or potential conflict of interest (Col) exists for any officer, faculty (including external grant holders (DST INSPIRE), visiting faculty, adjunct faculty, guest faculty, emeritus faculty and re-employed faculty), grant holder, associated entities such as start-ups and their members, invited / coopted participants (such as examiners and interviewers), staff (including project staff, outsourced staff and re-employed staff), trainees or student (hereafter referred to as constituent members). It lists the circumstances where Col may arise and seeks to prevent actions which appear partial, decisions which are preferential, influence of an improper nature, and consequent Col. It also lays down the guidelines for disclosures, either voluntary or mandated compulsorily, which allow Col and potentially conflicting relationships to be reported through a certificate of compliance, allowing instances of Col to be managed and disallowed if needed.

This statement on Col recognises that the Institute has a mandate of education and research for society which is over-arching. It recognizes that economic pressures, constraints, societal pressures, legislative demands, and political pressures, and the existence of financial incentives may distort this mandate and undermine the autonomy required by the Institute to achieve its mandate. The policy on Col of the Institute obligates its constituent members to avoid situations which lead to compromises of an ethical, financial or legal nature which are against the Institute interests. It protects the Institute's reputation as being fair and objective in making decisions based solely on merit. It also protects the rights of its constituents (students and employees) to treatment that is just, fair and equitable. **It is noted that this policy on Col is only one integral component of a more comprehensive policy on ethics at the Institute level.**

1 What is the IITD policy on Col ?

The general policy of the Institute shall be that (a) search, recruitment and promotion of faculty (b) assignment of teaching and other academic responsibilities (c) the pursuit and support of academic research and (d) any grant or denial of benefits or assignment of tasks (e) award of academic grades, marks and awards shall be made without regard to the political, social, or other views held by a faculty which are not directly related to academic principles nor directly pertinent to the assumption of academic responsibilities, without being influenced by fact of the faculty holding an appointment in the Institute, and without regard to the faculty's race, ethnicity, gender or religion. If this policy is violated due to the existence of any contrary interest, then a Col exists and must be disclosed and resolved.

Appointments and promotions shall be based on qualifications and work performance. Thus the existence of a family relationship (or an arrangement like a family relationship such as an intimate personal relationship) is extraneous to the matter of employment provided the relationship is disclosed and the matters of employment are managed such that a supervisor-supervisee relationship does not prevail at any time between the members concerned, nor one member be placed in a position to influence or to judge the other member's terms of employment, remuneration, academic advancement, assignment of responsibility or promotion.

It is expected that the Unit Heads will be responsible for the policies of appointments and promotions

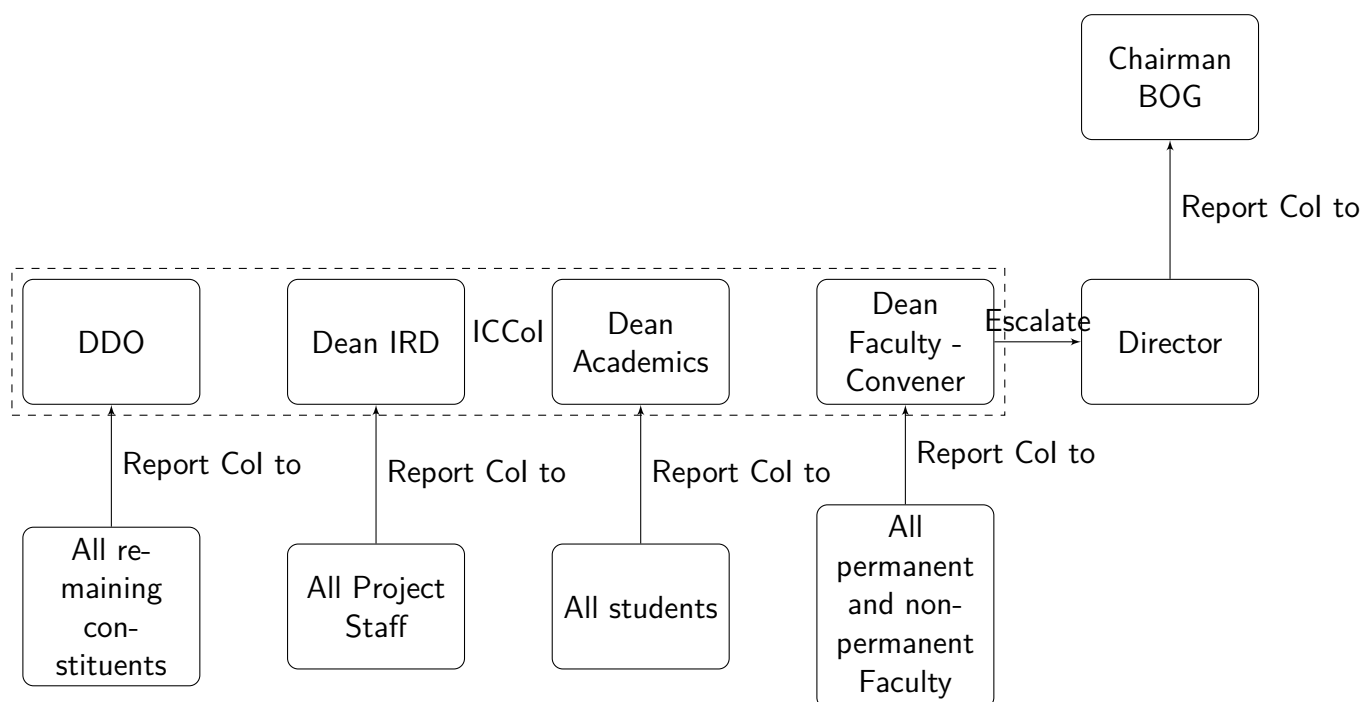
in such cases, the constituent members involved must disclose the relationship so that Col is managed.

2 Administrative process for handling Col and the Institute Committee on Conflict of Interest Issues (ICCol)

The identification and disclosure of Col is to be done in writing by the constituent member (defined in Section 3.1 on page 8). All such disclosures shall be made in writing to (using a Disclosure of Col Form), recorded by and resolved in the first instance by the Unit Heads (namely, Heads of Departments / Centres and Schools (through an Annual Disclosure for faculty and staff), AR E2 (for outsourced staff and support staff not attached to academic units), PI (for project staff) and Registrar for all remaining constituent members and categories).

Escalation of the resolution and management of Col procedure shall be done to a Institute Committee on Conflict of Interest Issues (ICCol) consisting of Dean Faculty - as Member Convener (for Col which is faculty conduct related) Dean Academics (for Col involving students), Dean R&D (for Col which is research and consultancy related). Other members may be invited / co-opted based on specific issues - such as DDO (for operations related issues), DR (S&P), MD FITT (consultancy and IPR) and Associate Deans.

Any matter which cannot be resolved by the ICCol shall be referred to the Director. Any matter pertaining to Col involving the Director shall be referred to the Chairman Board of Governors.



3 Definition of Conflict of Interest and associated terms

A Conflict of Interest (Col) exists if any constituent member(s) may be able to use research, information, authority, funds or the ability to assign or withdraw funding, or conflicting roles within the Institute, or influence for financial/non-financial gain (either personal gain or for gain to a family member, or

associate), or cause interference with or prevent the discharge of responsibilities to the Institute which is against and detrimental to the welfare, integrity and reputation of the Institute (hereafter referred to as the Institute's interest). The existence of Col is to be avoided because it compromises every action and decision taken, making the Institute's interest subservient to the personal benefit of the constituent member(s).

Col may be at the individual or at the Institutional level. **At the individual level**, any constituent members of the Institute acting on its behalf must avoid ethical, legal, financial, or other conflicts of interest (Col) and ensure that none of their actions, objectives or interests conflict with the Institute's interest. Often individual Col may arise from the opportunity to decide external research, awards to self or colleagues, recognition for self or colleagues. Such opportunities lead to circumstances where the direct or indirect beneficiary of those decisions is the constituent member or colleague(s), such as the management of funds, procurement of equipment, or the possibility of inducing students or colleagues to participate in sponsored or academic research for academic or financial gain, or the use of a administrative position for a undesirable and unfair objective. Any such Col must be acknowledged and disclosed in writing to the designated competent authorities as soon as it is anticipated or observed, and suitable steps and advice as recommended must be taken. **At the Institutional level**, the Institute must avoid Col by entering into any contract of obligation with an external party, private or governmental, which conflict with its mandate, its defined objectives or its status as a educational Institute. Any Institutional Col must be monitored and resolved by its governing bodies.

If such disclosure is not undertaken, whether deliberately or by oversight, the Institute's interests and public standing risk being adversely affected. Further, the reputation of the Institute and all involved constituent members would be at risk of being irreparably harmed along with the possibility of litigation and ensuing financial loss. The constituent member would be therefore subject to disciplinary procedures in case of non-disclosure of a Col, if wilful or malafide and liable to suitable action after review if declared inadvertent.

Any constituent member, in any role within the Institute, who is in a position to make a decision favouring any personal interest or a interest in conflict with the Institute's interest should disclose this in writing every year in a separate form (see Section 5 on page 11) whenever such a Col is known or perceived to exist. The policy of Col shall not be used as an punitive instrument to discriminate against a constituent member who, after review by designated authority, is found to have acted in good faith in the Institute interest.

The mere existence of Col does not imply culpability and does not attract either censure or penalty. It is contextual and circumstantial. The presence of Col does not always mean that the constituent member must be disassociated from the situation but it does imply that disclosure shall be made, and the involvement of the member shall be managed (either allowed, allowed in a restricted manner or disallowed) and recorded appropriately.

In circumstances where determining that Col exists is not straightforward, or where Col inadvertently exists or arises, disclosure in writing must be immediately done to the designated authority. Col may occur in situations where a constituent member is affected or seeks to influence by a personal relationship in any way contrary to the Institute's interest - inter alia, these may include any situation involving a educational, administrative, career or employment related interest, or those arising out of sexual or intimate relationships or non-contextual external relationships serving a personal interest (see Section 15 Relationships and Col).

All evaluations, by and of a constituent member, whether for administrative purposes such as recruitment, retention, promotions, salary-related, termination-related or dismissal-related, course work

assignments, research funds, leaves of absence, or for academic ones such as grading or providing a reference are expected to be fair, transparent and objective. Fairness, transparency and objectivity are compromised if there exists a Col due to a relationship (such a family member related by blood or marriage or by being members of the same household or housemates, domestic partners, partner in a overt or covert sexual relationship, business partners, partners with a close personal relationship other than family relationships or between partners with a financial or non-academic relationship and colleagues with a academic but malafide incentive). Especially, if such a relationship exists between constituent members such as a evaluator(s) (instructor, whether professor, supervisor, tutor, teaching assistant, member(s) of academic evaluation committees such as viva, comprehensive or thesis evaluation committees) and student, such disclosure must be done. Personal and intimate relationships often have effects on other constituent members which are not obvious to the parties involved, and disclosure in such cases is mandatory. A alternative arrangement for evaluation and supervision shall then be made by the Institute.

3.1 Definitions

Constituent member refers to any individual who is a employee, appointee, student or holds any position of engagement with the Institute (such as a visiting or guest faculty, visiting students, professional students or grant holders or out-sourced and adhoc appointments). It also applies to employees on leave of absence, sabbatical or lien. The term **Constituent Member** of the Institute includes any officer, faculty, external grant holders (DST INSPIRE), visiting faculty, adjunct faculty, guest faculty, emeritus faculty and re-employed faculty in their roles as researchers, instructors or co-supervisors of students; per-course instructors, postdoctoral fellows, research assistants, associated entities such as start-ups and their members, invited / coopted participants (such as examiners and interviewers), staff (including project staff, outsourced staff and re-employed staff), trainees or student and any other persons while they are acting on behalf of or at the request of the Institute.

Family members includes but is not limited to : spouse, domestic partner of any legal gender, children (biological, by marriage, foster or legally adopted), legal wards, siblings, parents, grandparents, grandchildren, uncles and aunts, relations-by-marriage such as father-in-law, mother-in-law, brother-in-law, sister-in-law, daughter-in-law, son-in-law, and those related by blood, adoption, or marriage. Disclosure of Col must be also be made in case of past relationships which have ceased or make not exist in law but may exist de facto such as divorced partners, separated partners, common-law partners, co-habiting partners etc.

Supervision means the direct ability or the power to influence effectively any part of the recruitment, renewal of appointment, evaluation, assignment of responsibility, assignment or determination of financial benefits or any compensation, transfer, suspension or dismissal or termination of employment, promotion, grant of any incentive, disciplinary proceedings, or settlement of appeals of any constituent member.

Real conflict of interest exists when (a) there is a established and clear private interest, (b) that it is known to the constituent member and (c) that it has a potential influence on the actions and decisions taken in that situation by that constituent member.

Perceived conflict exists when there is a reasonable and informed basis for existence of Col.

Potential conflict exists when a situation allows the constituent member to foresee that a private interest may influence a public action or a public decision. It may be either real or perceived.

Associate is a individual or representative of a organisation who holds a private non-academic interest, financial or non-financial, with the constituent member.

Family Associate is anybody related to the constituent member by blood, through a legal procedure such as adoption or legal guardianship, or is **or has been** related by marriage or common-law marriage.

Financial Interest exists when there is a expected or actual pecuniary benefit arising out of a public action or decision such payments for services (consultancies, bonuses, honoraria, advisory fees, recruitment fees, retainerships), options in equity, shares, stocks and warrants/promissory stock options, ownership or transfer of assets such as property, bonds or other collateral , and intellectual property rights (including patents, copyrights, royalties or related rights to product development).

Other benefits may be incentives which include paybacks of a non-financial nature, assurances of awards, memberships of prestigious bodies, opportunities such as executive roles, editorships of prestigious publications, inclusion in lobbies from which such benefits may be derived directly or indirectly)

Outside Activity refers to any allowed activity outside a constituent member's primary responsibilities of teaching and research to the institute as defined by the terms of appointment such as consultancy, advisory activity and the ownership of a business or association with a business interest. It includes any transaction with an entity in which the constituent member has a fiduciary role (i.e. is a director, trustee) serving or honorary officer, designated agent, partner, associate, personal representative, receiver, guardian, custodian, conservator, or other legal representative. Examples of external activities include *inter alia*: external employment, including free-lancing, moonlighting, part-time activities; consultancy; lecturing, presenting, or speaking; establishing and/or supporting a start-up company; serving as an expert witness; participating in a board of directors; participating in a scientific advisory board.

Personal Associate is anybody with whom a constituent member has had a financial or intimate relationship.

Professional Associate is any person with whom the constituent member has had a substantial professional relationship including, *inter alia*, as a mentor-student, co-author, research collaborator or research investigator or research evaluator, or as administrative supervisor or supervisee.

Unit Head includes Heads of Departments, Heads of Centres, Heads of Schools, and members of the administration with their respective defined jurisdiction. The Unit Head (for the limited purpose of the Col policy) for the Director shall be the Chairman, Board of Governors.

4 Significance of Conflict of Interest

4.1 Responsibilities

Every constituent member is individually responsible for complying with the Col policy. They are supposed to recognise situation(s) where Col may arise, or in which others may see them as having a Col, and to disclose that Col in writing so that it may be suitably recorded and managed.

Further, every interaction and agreement with an external body must be examined for Col for suitable compliance.

The respective Unit Heads are responsible for ensuring that the Col policy is implemented, maintained

and suitably explained and interpreted in the Institute's interest. Further, they must ensure that constituent members within their Units are informed about the existence of this Policy, and must keep records of disclosures and Col management decisions made on disclosure.

The primary role of the Col policy is protective of the interests of the individual and the Institute. It recognises that infractions of the Col could be trivial (requiring little to be else besides recording it) or substantive (leading to litigation and loss of public reputation). If there are situations where the interpretation of Col, its identification and method of resolution warrants escalation, the authority to whome the disclosure is made may refer it to the Supervising Authority to the respective Dean and if necessary, then to the Director.

All action pertaining to the identification, disclosure and remedy, or disciplinary action due to Col shall be recorded and acted upon promptly and without delay.

5 Col Disclosure Form

Indian Institute of Technology Delhi
Conflict of Interest Disclosure Form

Name:	Unit (Dept/Centre/School/Section):
Designation:	Emp Code (if available):
Academic Year:	
For Research Projects, Project No:	
Names and EC of all other Investigators:	
<i>(Add more rows wherever needed)</i>	

I hereby disclose the following Conflict(s) of Interest:

1. I receive compensation for these External Professional Activity/Activities

Description	Nature of the Col

2. I have the following Business Interests with Relationships (personal, family or other)

Description	Nature of the Col

3. I have the following other External Activities:

Company or Organisation	Describe your Relationship; Nature of External Activity and nature of the Col

4. I have the following other Conflict of Interest:

Description	Nature of the Col

Disclosure of Col for Research and Consultancy

- Any proprietary interest(s) in the product under study or the outcome of the research including, inter alia, patents, trademarks, copyrights and licensing)?
- Any financial, business, stock/equity in the Sponsor of the study, or a business competitor of the Sponsor including, inter alia, ownership, shares or any other financial interests?
- Is there any financial understanding by which the compensation depends on the outcome of the study?
- Any compensation (financial or otherwise) from either the Sponsor or a Competitor (if Yes, disclose amount or nature)?
- Any relationships or conflict of interest of a non-financial nature (interpersonal relationship, academic interest, other incentives etc) that may affect the study, study participants and restrict the nature of form of participation in the study?

6. Any factor which will affect the academic integrity, scientific merit or mode of conduct of the research? ?

If your answer to one or more of the above questions is yes, please describe:

Please describe the steps *you* have taken to minimize / manage the conflict of interest described.

To be filled in by Reporting Authority: please describe the steps taken to manage the conflict of interests declared.

Declaration of Conflict of Interest by Constituent¹

These declarations represent all the real, potential, perceived conflict(s) of interest involving me for the Academic Year _____.

Name: _____ Signature: _____ Date: _____

Record of action taken by the Unit Head ² on declared Conflict of Interest

I have read the declaration(s) of conflict(s) of interest and am satisfied regarding the accuracy and completeness of the declaration. I am also satisfied that they are adequately addressed by the mitigation mechanisms described.

Name: _____ Signature: _____ Date: _____

¹See Sec 3.1 on Page 8 : **Constituent member** refers to any individual who is a employee, appointee, student or holds any position of engagement with the Institute (such as a visiting or guest faculty, visiting students, professional students or grant holders or out-sourced and adhoc appointments). It also applies to employees on leave of absence, sabbatical or lien. The term **Constituent Member** of the Institute includes any officer, faculty, external grant holders (DST INSPIRE), visiting faculty, adjunct faculty, guest faculty, emeritus faculty and re-employed faculty in their roles as researchers, instructors or co-supervisors of students; per-course instructors, postdoctoral fellows, research assistants, associated entities such as start-ups and their members, invited / coopted participants (such as examiners and interviewers), staff (including project staff, outsourced staff and re-employed staff), trainees or student and any other persons while they are acting on behalf of or at the request of the Institute.

²See Sec 3.1 on Page 8; **Unit Head** includes Heads of Departments, Heads of Centres, Heads of Schools, and members of the administration with their respective defined jurisdiction. The Unit Head (for the limited purpose of the Col policy) for the Director shall be the Chairman, Board of Governors.

Part II

Management of Conflict of Interest in IIT Delhi

6 Procedures and action to be taken on Col

Once Col is detected or anticipated, either the constituent member must disclose the Col in writing (along with a explanation that Col does or does not exist if such a explanation is merited) or the Unit Head must request that this disclosure be made in writing.

The constituent member must disclose the Col prior to their engagement in the activity. The disclosure and the approved management plan by the Unit Head must be recorded and a copy forwarded to the appropriate Dean.

The constituent member who has disclosed a existing Col in writing will be offered a resolution and management plan which may or may not ask for disassociation from the situation.

All disclosures of Col involving expenditure of research funds must be made prior to the commitment or expenditure of research funds. The constituent member shall be liable for any fiscal disciplinary action due to non-compliance.

In situations where a resolution is not possible, the matter may be referred by the Unit Head to the Dean with a explanation as to why it is being escalated.

6.1 Recognising if Col exists

To recognise Col, the driving interest needs to be identified. There are three aspects to identifying this interest.

1. Is there a relationship or role indicative of a relationship?

The following must be checked - is there any role involving an external party outside the Institute, roles of constituent members outside the Institute, any multiple roles held by constituent members inside the Institute (such as committee memberships) and roles involving decision-making in and or behalf of the Institute, Units or individual constituent members , or roles involvng close personal relationships.

2. Are there activities which give rise to potential conflict of interest?

Are there activities involving a start-up in which the constituent member has a interest, IPR, procurement, conduct and control of sponsored research and funding of research, external appointments, and decisions which influence appointments, admissions and hiring.

3. Are there any financial or non-financial Cols ?

This can be identified by checking it there are opportunities for **any** personal financial gain or financial gain to relatives and friends. Financial gains include, but are not limited to, payment in

kind, retirement of debt, hospitality, gifts, equity and stock and sharing of intellectual property rights (patents, copyrights, royalties etc). The quantum of financial gain is not to be considered - **any** financial gain should be disclosed.

Non-financial gains also cause significant Col which must be disclosed. Any benefit or advantage to direct or indirect advancement of a career, or gain to immediate personal associate or associate may lead to Col.

6.1.1 How should Col be declared or disclosed ?

It is the duty of every constituent member of the Institute to disclose any Col.

The disclosure must be made at the earliest of the following occasions - the first occasion on which it is encountered or is apparent, or immediately after it is recognized or pointed out. It must be disclosed in writing to the Unit Head. If the Unit Head also has a Col in the matter, a copy shall be forwarded to the Registrar for record and the Dean of the appropriate division for resolution.

Special situations are dealt with similarly like research students receiving financial support from a company in which their Supervisor is financially involved, where IPR is related to their research, research by constituents with financial interests in a company in the same area, association with start-ups or procurement related activities involving these entities.

Students must discuss disclosure of Col with supervisors.

Chairs of committees and committee members, members of governing bodies must also disclose financial and non-financial Col. At the first meeting of the year of any Committee, it is suggested that the first Agenda item should cover what a Col is and how to disclose it. Members will be asked to disclose any Col, and all disclosures will be recorded in the Minutes. Then, if the Chairman considers it appropriate, the member shall be asked to recuse or disassociate from the Committee's deliberations on all or part of the matter.

All members of the Administration shall be required to provide a Col declaration to the Registrar - the Director, Deputy Directors, Deans and Associate Deans, All members of Standing Committees, members of all statutory and non-statutory bodies, Unit Heads, and all other members of the administrative staff.

6.2 Procedures for managing Col

Once Col is disclosed, the following procedures (all or some may be adopted) are suggested: recusal from part of the discussion and decision pertaining to certain matters, not acting as a particular person's supervisor, divesting or disassociating from financial interests that lead to Col, dis-association from a particular project, and or declaring the Col to a would-be sponsor or external agency.

In matters involving nomination, recruitment, promotion, authorization of any matter concerning a family member of a colleague, the following procedure is recommended: (a) the related member shall not be associated with any aspect and shall not supervise or participate in any decision which affects the recruitment or terms of employment of the family member (b) all decisions regarding the family member shall require a full attendance by all members of the committee except the related member and shall be conducted by a procedure which ensures confidentiality of the individual decisions taken,

given the sensitivity of the fact that their decision concerns the family member of a fellow colleague.

In all cases, the prescribed procedure should be recorded in writing, reviewed and provided in response to authorised requests whenever necessary (such as RTI).

6.2.1 Permitted exceptions even if Col exists

If Col exists, alternate arrangement can be made and recorded by the designated authority. However, the following exceptions are permitted:

Two family members may be recruited by the Institute, if all norms of recruitment are followed, even within the same Department, provided all family members comply with the Col policy.

Family members are allowed employment within the same Unit. This holds even if the relationship develops after the recruitment.

One of the family members is not forbidden from a supervisory position in the Department provided there is no participation in the recruitment, and alternative arrangements are made to avoid direct supervision and participation in the career progression of the other member.

No employee is prohibited from taking general decisions that also affect a category of class of employees, one of whom may be a family member (example: salary revisions, benefits, termination of employment)

No employee is prohibited from participating in general financial decisions, including those regarding affecting compensation and benefits of a family member, or from financial decisions affecting the department to which a family member belongs.

6.3 Procedures for mitigating Col

For most purposes, a single self-disclosure that a Col exists would suffice for mitigating Col. However, if a Col is pointed out and found to have a basis, disclosure can be subsequently made. Wilful suppression of Col shall lead to disciplinary action.

6.4 Procedure for resolving Col

Immediately upon disclosure of Col, the Unit Head must resolve the Col by making alternative arrangements for supervision and for removing the member from the direct line of decision making.

Alternative arrangements need to be made (a) for constituent members who are family associates or personal associates so that no impropriety is attributed to their actions and decisions (b) whenever a subordinate constituent member is tasked with supervising the family member of his or her supervisor (c) whenever a family member is a applicant for a post for which the constituent is responsible and in a position to considerably influence (d) if the post being applied to call for supervision by a family member

6.4.1 Removing oneself from Col

Disclosure, followed by recusal or part or full disassociation are accepted procedures advised to remove oneself from a situation where Col exists.

6.5 Whistleblower mechanisms for Col

Any constituent member may represent to the ICColl describing the existence of Col which was sufficiently disclosed, sufficiently managed or sufficiently resolved. Such disclosures will be made in complete confidence and confidentiality of the complainant shall be safeguarded. Anonymity can be preserved in Minutes but the identity of the complainant shall be disclosed to the ICColl and kept in sealed cover.

6.6 Col and the Actions required through the research lifecycle

Research grants, applications for obtaining grants, the decision that drives their sanction - these are all potential areas for Col. Through the research lifecycle, some or all of the following actions may be called for: (a) all grant applications are required to disclose if there is a Col in the application or negotiation stage. For example, if I win this grant, I intend to sub-contract it to my start-up firm on campus as a invoiced order. (b) Col, which had not existed before, may arise due to changes in supervision, changes in conditions of employment, due to the possibility of publications, due to invites to take up consultancy, due to technology transfer - these must be suitably disclosed at the onset.

7 Outside Professional Activities and Col

7.1 External Professional Activities

The Institute interest is served when its constituents interact with industries, business entities, participation in external committees, government and other such bodies and further its mandate. Typically, such interaction occurs as consultancy, and are encouraged as they allow the particular expertise of the member to be utilized while they enrich the member's professional growth. It is important that the activity in these committees be discussed with the Unit Head and disclosed before the member commits to them. In all such activities, the Col must be constantly monitored as the Institute's interest is most vulnerable in such situation and under the glare of public scrutiny.

In all such activities, approval of the Unit Head does not mean that the Institute is responsible for the activity or the advice. It is important that the highest levels of ethical behavior be adhered to in such situations in the Institute's interest.

7.2 Avoiding Col in the use of the Institute image or name

Associating the name or image of the Institute with a commercial interest may cause a Col in the public image of the Institute. Public endorsement of commercial products or association of the Institute with

a individual opinion in public or private reports is not in the Institute interest. The use of the Institute letterhead in providing letters which carry a private opinion with or without a financial consideration , which may convey a endorsement by the Institute where none exists is not allowed henceforth. Letters provided for purposes such as these may carry the departmental address sufficient for postal purposes such as a room number or a block number but without a letterhead or masthead of the Institute or any representative logo or symbol that is synonymous with the Institute.

No constituent member (faculty, staff or student; active or retired) deriving benefits from the Institute shall vilify, denigrate, demean or otherwise cause disrepute to accrue to the public image of the Institute by the use of derogatory comments, negative comments or disparaging remarks either verbally or in any other form of communication. This behaviour would be taken as not being in the interests of the Institute and as it brings the public image of the Institute into disrepute and shall be deemed as a Col.

7.3 Col in allowing access to facilities of the Institute

Access to the facilities of the institute by external firms must be restricted as per norms to avoid giving the impression that there is any special dispensation the firm enjoys with the Institute when, in fact, it does not.

All facilities of the Institute exist for the primary mandate of education.

Institute facilities may also be made available for meetings, cultural presentations, entertainment programs, and topical programs that are primarily intellectual in nature. Any request for use of Institute facilities will be (a) subject to priority and usage policy (b) prior commitments of that facility (c) the appropriateness of that facility to the usage proposed and (d) the nature of usage given Institute's mandate as a public govt-funded Institute.

Example: If a senior member of the Administration is organizing a Conference and orders that the basement parking be used for registration or for lunch, there is a Col.

7.4 Col in incentives to junior faculty

Involving junior faculty in external professional activities is encouraged, and senior faculty may help junior faculty by offering them technical advice and help. However, senior faculty must exercise objectivity while judging junior faculty so that issues such as promotion and career advancement as not influenced due to this fact of collaboration with senior faculty.

7.5 Col in Incentives (Gifts, Loans, Honoraria, Gratuities and Entertainment)

A constituent member cannot accept gifts, loans (except those loans which are made with due paperwork from a bank), undisclosed honoraria or any financial consideration, gratuities, or any form of offer of entertainment where such acceptance would or could be interpreted as intention to influence the performance of duties or the taking of a decision. This is generically applicable to all and specifically to be kept in mind and particularly applicable to constituent members dealing with vendors, outside members and organisations, and procurement issues where such consideration may be obscured by terming

the gift as 'customary' festival gifting. This does not prevent the acceptance of items of nominal or insignificant value subject to the code of conduct rules for Government employees or acceptance of honoraria subject to limits and exemptions of income tax rules.

7.6 Col in Endowments and Philanthropy

The Institute will not solicit or accept any charitable donation, gift, pledged funds whose source is suspect, undisclosed, untraceable, or a result of activities not in the interest of the Institute.

The Institute will not accept any fund which compromises or limits the ability of its use by the constituent members to conduct and/or report results that are compliant with the highest levels of scientific and ethical standards and in the interest of the Institute.

The Institute will not accept funds or capital assets that are granted conditional to the outcome of any business decision such as procurement.

Financial authorities within or external to the Institute shall not communicate with, discuss or influence the investigators regarding the research results of the funds. The research conducted with the funds/endowment, the activities conducted by investigators and the results thereof shall not be influenced by the source of the funds or endowment. For example, the incumbent in a Chair funded by entity X or in a research project funded by entity 'X' is not obliged to produce 'good' or 'favorable' results for entity 'X'. If this separation is not scrupulously maintained in spirit and practice, a Col exists.

7.7 Faculty and students

Col exists when a student is substantially involved, either for a financial or non-financial consideration, in the professional activities of a faculty member and this involvement is rewarded with academic benefits to the student. Engagement with the faculties professional activities should not influence the student's academic duties. Generally, if a faculty member is the supervisor, then the student should not be involved in external activities of the faculty. Especially when the external work has a relation with the student's thesis, Col should be avoided.

7.8 Faculty and Support Staff

While it is not prohibited that support staff should assist faculty in external activities, there is a possibility of Col and for conflict over the nature and quantum of compensation. It is expected that support staff will provide assistance to duties which are in the Institute interest, and the compensation in these cases may be nominal or non-existent. However, if the effort is long-term and substantial, the Col and terms of compensation should be worked out beforehand.

7.9 Use of Institute Name

The name of the Institute must not be used as a endorsement or even in a manner that may be understood as a endorsement of a commercial interest or product. All proposals to use the Institute's name, logo in any form of endorsement must be approved of in writing by the Registrar.

Constituent members must not allow the usage of their names or the fact that they are employed by the Institute to imply that the Institute endorses what may be a individual opinion. Thus the use of the Institute letterhead for public reports or a statement made under a consultancy is to be avoided. Similarly, Institute letterheads and logo cannot be used by individual faculty for providing personal certificates such as job experience testimonials to summer interns, students and staff without written permission from Registrar or Competent Authority.

Any bank account with the Institute's name either in full or in abbreviated form must only be used with permission from the Registrar.

7.10 Use of institute letterhead and official Institute business card

The use of Intitute letterhead (and official Institute business card) is prohibited for personal or professional purposes and correspondence as there may be misunderstandings that these are official correspondence with the institute or issued by the Institute. Such personal or professional correspondence may list only the Departmental address and not the name and logo of the Institute as a masthead or letterhead.

7.11 Use of facilities and Col arising thereof

Intitute facilities such as classrooms, auditoria, athletic and recreational are not for the use of any individual. They are only intended for use by authorized constituent members with permission for certain stated purposes serving the educational purpose of the Institute. They may be used for cultural, entertainment programs which are considered to have a stimulating intellectual context. They may not be used for any other purpose without a Col arising.

Further to avoid Col, all publicity (hoardings, posters, banners) must be reviewed before being put up. The organisation will be held responsible for the orderly conduct of the event. The stated use of a facility cannot be changed after allotment. Any leaflets, handouts must have the complete contact details of the organisation sponsoring the event. Events by students organisations recognised by the Institute must be endorsed by the Dean of Students. Non-student organisations must register events with Coordination Section. events which are open to the public must be reviewed and approved by Registrar and Security Officer. No tickets for events on campus can be offered for commercial sale.

The facilities of the Institute may be made available for meetings, cultural events, entertainment events, and programs of current interest that serve to create a intellectual objective. In general, requests for use for these purposes will be granted conditionally, subject to a) the specific usage policies established for the requested facility, b) the prior regular scheduled commitments of that facility, c) the suitability of the requested space for the particular usage envisaged, and d) the Institute's mandate as a educational institution.

Facilities are not made available to individuals except in their capacity as constituent members of the Institute. Non-Institute programs may be allowed under the supervision/oversight and responsibility of a constituent member of the Institute with prior permission of the Competent Authority (Dean of Students for all student related activities, Dean of Faculty for all faculty activities and DDO for all remaining activities).

7.12 Use of Institute facilities by non-Institute groups

The Institute allows the use of some its facilities when the usage is in the interests of the Institute and compatible with its mandate. Such usage must be allowed by the Competent Authority who will assess the proposed usage, seek appropriate supporting documents to certify its authenticity, and permit it.

Institute facilities will not be suitable for industrial meetings, commercial programs and private training usage as they are not in the interests of the Institute. This does not include programs of the Institute which are sponsored by a commercial entity which may be permitted after careful assessment.

In all cases, the usage will only be allowed after judging the following:

1. if the proposed program has any relation with any program, cause or group within the Institute community
2. that the booking is made by a responsible constituent member (with financial liability for the organisation on whose behalf the booking is being made) of the Institute
3. if the participation in the proposed event substantially involves the Institute community
4. if the sponsoring entity of the program, the persons participating in the program, and the person(s) making the booking are judged as responsible
5. all costs to the Institute are suitably assessed as reasonable, and compensated for.
6. the proposed space is suitable to the usage for which it is being requisitioned

7.13 Recognition of priority of facility usage to prevent Col

The use of any of the facilities of the Institute is governed by the following priority of use:

1. All classrooms, meeting, seminar, and conference rooms should be accessible by all Academic Units for the purpose of conducting Institute business, with the following order of priority given:
 - (a) the first right of use to the Academic Unit/Unit to which the space is assigned.
 - (b) Meetings of the BOG, Senate, ECS, Dean's Committee and various administrative committees,

In general, except for semester long courses, rooms cannot be reserved more than 1 month in advance, except for Committees with yearly meeting schedules (such as faculty search committees), events such as training programs and conferences that involve external participants.

Requisitioning users are fully responsible financially for handing back rooms in their original state. Non-compliant users may lose the privilege of using shared facilities as their usage constitute a Col affecting the shared nature of the facility for other members.

A reserved facility cannot have the reservation rescinded or revoked except for extraordinary situations. Any unwarranted revoking would be a Col as it would adversely affect the requisitioner and the planned program.

8 Use of outside facilities by the Institute

It may be necessary to conduct official business at a facility or venue outside the Institute. The booking of such spaces or facilities should be strictly need based and should not be done to escape the ambit of rules that would be normally be binding within the Institute. No external facility or space shall be used by the Institute in which the membership is discriminatory or where, for any reason, a constituent member of the Insititute would not be allowed access or be denied access on any basis. Col should be avoided with care exercised that no norm of rule of the Institute is violated while the external facility is used by Institute members.

9 Use of facilities for political action

Institute facilities shall not be used in any campaign or political process.

10 Responsibility of the Unit Head

Unit Heads must ensure that the members of their Unit are familiar with the policy of Col for institute policies and external procedures. Further, the Unit Heads must (a) remain updated about the professional activities of the constituent members (b) advise faculty, staff and students about Col policy (c) provide clear and unambiguous resolutions to Col, (d) maintain records of disclosures of Col and finally (e) escalate matters to higher supervisory levels if needed.

11 Non-compliance

Complete compliance is expected. Wilful or malafide suppression of Col and non-disclosure of Col shall lead to disciplinary action.

12 How to seek Review of existing Col Policy

The ICColl shall periodically review and update the Col policy every three years. Such periodic review not withstanding, the ICColl may issue amendments and revisions as when necessary, with due publicity to all stakeholders.

13 Increasing awareness of Col through sensitization workshops

Unit Heads shall provide the context of Col to new employees. The first meeting of every Committee shall start with the awareness of Col and its disclosure.

14 More information on Col

For any Col issue concerning faculty/teaching staff, the Dean of Faculty is to be referred to. For students and non-teaching staff, the Dean of Students and the Deputy Director Operations respectively are the Competent Authorities.

15 Relationships in Col

Relationships by family, marriage, domestic partnerships or co-existence in a household, or the existence of a intimate relationship will not preclude or adversely affect hiring, promotion, or fulfilment and furtherance of any academic career objective so long as the constituent member meets the prescribed standards. This will also apply in situations where the change in a relationship is post facto e.g. the marriage of two constituent members after employment, or a development of a intimate relationship after recruitment or the marriage of a supervisor to a student are examples of such a situation.

The following activities by a constituent member require prior disclosure in writing to the Unit Head and a record of the Col management plan advised :

1. when, with funds from the Institute (or in Units such as IRD), there is a proposed recruitment, supervision, commercial evaluation of, procurement from, selling to, engaging in any personal transaction, or either denying or giving a financial benefit to any Family member, personal associate or associate.
2. when there is a academic evaluation of, or there is a academic benefit being given to a family member, personal associate or associate.

15.1 Close personal relations with colleagues

A clear Col exists when one constituent member influences, drives or is a participant in a decision involving another colleague with whom there is a close intimate relationship.

15.2 Close personal relations with students

A close intimate relationship which a constituent member may have with a student is a clear Col IF there is a direct or indirect influence is exercised over any decision involving the student. Since a faculty, staff or teaching assistant exercises a control over the academic grade of the student, the Col also extends to allegation of sexual harassment since the relationship, where one of the parties is in a position of authority, may be coercive and of a unwelcome intimate nature.

15.3 Disclosing Col in matters relating to a personal relationship

Disclosure of Col due to a personal relationship does not require disclosure of the details and nature and extent of the relationship. It may be made in confidence. The Col is adequately resolved by either

disassociating the constituent member from the person with whom the relationship exists or by ensuring that a third-party oversight mechanism to review the propriety of any decision taken in a supervisory capacity.

15.4 Disclosure on matters pertaining to litigation which might affect the Institute

Any constituent who is the subject of litigation which affects the interest of the Institute is required to disclose the details of the litigation, the circumstances of origin of the litigation and the real / implied effect on the interests of the Institute. This does not extend to litigation of a purely personal nature such as civil disputes, divorce proceedings etc unless the interests of the Institutes are affected thereby. For instance, a new faculty member who is facing a disciplinary committee or a enquiry committee should disclose this at the earliest opportunity either at the time of applying or, in any case, before joining – failing which such non-disclosure may be considered intentional and, hence, wilful or malafide.

16 Case studies and examples of Col

Examples and Case Studies from Oxford University

16.1 Financial interests:

Examples of situations in which financial declarations of conflicts of interest are made:

1. Staff of the University serving on other bodies, eg research council committees, grant review panels, editorial boards etc will typically be asked by those parties to declare financial interests.
2. Authors submitting a manuscript must disclose any 'significant financial interest' or other relationship with the manufacturers of any commercial products or providers of commercial services discussed in the manuscript and any financial supporters of the research. The intent of such disclosures is not to prevent an author with a significant financial or other relationship from publishing a paper, but rather to provide readers with information upon which to make their own judgments.

16.2 Research:

Examples of situations that give rise to conflicts of interest in research include:

3. The researcher has a financial interest in the company sponsoring the research, this being exacerbated if the value of the researcher's interest may be affected by the outcome of the research. The researcher is an inventor of patents or creator of other IP whose value may be affected by the outcome of the research.
4. The researcher holds a position in an enterprise (eg as director) that may wish to restrict (or otherwise manage) adverse research findings for commercial reasons or not wish to publish the results of the research.

5. A researcher or a related body in which the researcher has an affiliation or a financial interest may benefit, directly or indirectly, from dissemination of research results in a particular way (including any unwarranted delay in or restriction upon publication of such results).
6. A researcher conducts a clinical trial which is sponsored by any person or organisation with a financial interest in the results of the trial. A postgraduate research student conducts research on a project that receives support from a company in which the student has a financial interest or significant position.
7. Some research funding agencies set specific disclosure requirements related to financial interest. They may require, for example, direct notification to them or to University officials where a principal investigator's financial interests might reasonably appear to be affected by the outcomes of the research. Some types of research, eg clinical trials, also require additional declarations related to financial interest. Researchers need to be aware of and comply with those specific requirements. Further information can be found in the terms and conditions of the grant or contract. Researchers should contact Research Services if they are in any doubt as to the requirements.

Simultaneous and multiple Col: While the PhD / MSR admission interviews are on, a faculty member "X" approaches a interview panel consisting of Profs.X,Y and Z during a tea break and asks that the candidate they just interviewed be accepted for admission. The Committee members unanimously express their surprise – they felt the candidate was not worth taking. "I know", says "F", "but I need her for a research project whose funds have not come through. I need her for a semester. By that time, she would have under-performed and she will probably be kicked out anyway. But my work and need for her services would have been finished." It is to be recognized that there are multiple Cols involved. The Committee is being asked to select a candidate it normally would not have selected. The faculty member is gaming the system - there is that Col. The student, who thinks she has been selected, is really being exploited - there is that Col too.

16.3 Student supervision and teaching

Examples of situations that give rise to conflicts of interest in relation to student supervision and teaching include:

8. Staff with a close personal or familial relationship with a student or a student's family who may be involved in decisions about that student's admission, supervision or academic progress, or the award of any studentships, prizes or other grants to the student.
9. An academic or a non-academic member of staff who is on the Board of Governors of a school who may be involved in considering a student from that school for an undergraduate place.
10. A member of staff who is in a position to judge the quality of a student's work or to evaluate a student in any way holds or proposes to take a financial stake or hold a formal position in any student-run, -owned or -controlled commercial venture whilst that student is enrolled at the University.
11. A postgraduate research student receiving support from a company in which his/her academic supervisor has a financial interest or position.

16.4 Other examples of possible conflicts of interest

12. Participating in the appointment, hiring, promotion, supervision or evaluation of a person with whom the staff member has a close personal relationship.
13. A researcher has a financial interest in the licensee (or proposed licensee) of University intellectual property.
14. A staff member takes part in the negotiation of a contract between the University and a company, where the staff member or his or her family or a close personal friend has a financial or non-financial interest (eg a directorship) in that company.
15. An academic who has a senior editorial position with a commercial journal is also on a University library committee that recommends journal subscriptions.
16. An academic chairs a University committee which is to consider the allocation of funds to be shared between a number of colleges, including his own.

Case studies from the University of Waterloo The following list of examples, while not comprehensive, is illustrative of situations which may lead to an indirect or direct conflict of interest:

16.5 Favoring of Outside Interests for Personal Gain

Entering into a research contract with a company in which the faculty or staff member, or a member of her/his immediate family, has a financial or other interest. Directing the faculty member's government sponsored research program to serve the research or development needs of a private firm in which the faculty member has a financial or other interest. Influencing the purchase of equipment or materials for the University from a company in which the faculty or staff member has a financial or other interest. Accepting significant gifts or special favors for personal gain from private organizations with which the University does business. Entering into a licensing agreement for the development of intellectual property, generated as a result of University research, with a company in which the faculty or staff member has a financial or other interest.

16.6 Inappropriate Use of University Personnel, Resources or Assets

When a supervising faculty or staff member uses University students or staff on University time to carry out work on her/his own behalf for a company in which he/she has a financial or other interest.

Unauthorized and non-reimbursed use of University resources or facilities to benefit an individual or concern, private or otherwise, in which the faculty or staff member has a financial or other interest. For example, apart from a *de minimis* use on a strict need-to basis, the use of telephone (such as for a personal international call) and computers for personal purposes amounts to Col.

16.7 Inappropriate Use of Information

Using for personal gain, or other unauthorized purposes, privileged and/or confidential information acquired as a result of the faculty or staff member's University-supported activities; such information might include knowledge of forthcoming developments requiring contractor or sub-contractor selection, bulk purchases, etc. Unreasonably delaying publication of research results (e.g., thesis research) or premature announcement of research results to secure personal gain.

16.8 Conflict of Commitment

Undertaking external consulting, professional or other activities which, by virtue of their time commitment, prevent the faculty or staff member from fulfilling her/his obligations to the University. Involvement in external organizations which bring a faculty or staff member into a position of divided loyalty between the mission of the University and the interests of the external organization.

16.9 Inappropriate Involvement in Appointment Processes

Participating in the appointment, promotion or hiring of a person with whom the faculty or staff member has a marital, familial or intimate relationship.

Example from NYU 1. An employee works part-time for a new start-up company that seeks to advertise to NYU students. The employee is asked by the start-up to send an email to an NYU distribution list to advertise the start-up's services.

2. An employee encourages her brother to apply to an open position at NYU being reviewed by a hiring committee on which she sits.

3. An employee involved in executive education programs at NYU accepts a gift of an all-inclusive weekend in the Bahamas from an executive education company.

4. An employee who is involved in the NYU admissions process takes part in NYU's assessment of her niece, who is applying for admission to NYU."

Examples from University of Saskatchewan The following are illustrative of situations, which may lead to a conflict of interest.

A University member has a position or interest in an entity whereby she/he can exercise significant influence in transactions between the entity and the University. University members who are responsible for specifying or approving materials, equipment or services purchased by the University, must not have any financial interest, either direct or indirect (e.g. a family member, spouse, or friend), in the transaction.

Contracting with the University as a supplier of materials, equipment or services.

Principal investigators, co-investigators and research personnel accepting ownership shares (free or discounted) in a company with which the University is contracting research services on their behalf.

Involvement in activities that conflict with a commitment to the assigned duties and responsibilities of the member's position with the University.

Transmitting to outsiders for personal gain, University supported work products, results, materials, property records or information.

Using for personal gain, or other unauthorized purposes, privileged information acquired in connection with the University member's University-supported activities. This privileged information includes, but is not limited to, academic, medical, personnel, or security records of individuals; anticipated material requirements or price actions; knowledge of possible new sites for University-supported operations; and knowledge of forthcoming programs or selections of contractors or subcontractors in advance of official announcements.

Acceptance of gratuities, gifts or special favors from entities or individuals with which the University does or may conduct business.

Extending gratuities or special favors to employees of sponsoring agencies, which may be interpreted as having any possibility of influencing the recipients in the conduct of their duties.

Misuse of University resources, including facilities, personnel, equipment, materials or confidential information for any purpose other than the performance of the individual's University duties.

Acceptance of employment, an official relationship or a consulting arrangement with another entity which has business relations with the University.

University members in a position to influence the appointment of family members, relatives and affiliates to positions at the University.

Services performed by University members on their own accord or under the auspices of a company, in which they hold an interest, when the service can be performed through the University or as part of the University member's duties.

Conflict of Interest – A Committee rendered defunct due to inter-personal issues A Committee of Professors is constituted for a purpose, with two distinct non-compatible groups A and B, A being the larger group numerically. All members of the groups are compatible with each other but not with the other group. So the Chair is elected from Group A. The Chair now takes to calling meetings at short notice (sometimes 10 minutes before the meeting is due to start, issuing invites over the phone) so that members of Group B cannot attend. When the attendance of members of Group B is imminent, the meeting is re-scheduled repeatedly so that they cannot attend. This is a case of Col since this Committee is not working cohesively and their deliberations are not in the best interests of the issue at hands and therefore, not in the interests of the Institute.

Conflict of Interest – a new Faculty Member being asked to supervise a student due to complications arising in the student's academic history A student has overshot his stay by a year, been terminated and has moved court against the Institute. Under Court orders, the Institute must find a Supervisor and allow the student to complete. No Faculty member is willing to take this extra responsibility since the case is not straightforward. The Unit Head calls in a new faculty member, and without apprising her of the issues involved, convinces her to take on this extra responsibility. Having agreed, the new faculty member sees that she has been had but is bound to follow through on her decision. The Col is that the Unit Head, knowing fully well the ramifications of assigning this case to

a new subordinate, chose to do so, keeping her in the dark of the implications. There was, thus, a Col in which the Unit Head did not protect the best interests of the subordinate by a deliberate process of dis-information.